

1.0 Administration

1.09 Civil Rights

Effective Date: 6/04/2026

PURPOSE: To ensure the civil rights of WIC Program applicants and clients are protected.

DEFINITIONS:

Discrimination means the act of distinguishing one person or group of people from others, either intentionally, by neglect, or by the effect of actions or lack of actions based on their protected bases.

Complaint means a verbal or written allegation of discrimination that indicates an FNS-conducted or assisted program is administered or operated in such a manner that it results in disparity of treatment, or services being provided to persons or groups of persons because of their protected bases.

Complainant means a person or group of people who allege discrimination in the delivery of program benefits or services by a state agency, local agency, or other subrecipient.

Disability means physical or mental impairment that substantially limit one or more of an individual's major life activities, having a record of such impairment, or being regarded as having such an impairment.

Interpretation is the process by which the spoken word is used – generally in real time – when transferring meaning between languages.

Translation is the process of converting written text from a source language into an equivalent written text in a target language as fully and accurately as possible while maintaining the style, tone, and intent of the text, while considering differences of culture and dialect.

Major life activity means functions such as caring for oneself, performing manual tasks, walking, seeing, hearing, speaking, breathing, learning, and working.

Meaningful access means access that is not significantly restricted, delayed, or inferior as compared to programs or activities provided to English-proficient individuals. Language assistance offers meaningful access if it delivers accurate, timely, and effective communication at no cost to the individual with Limited English Proficiency (LEP) needing assistance.

Qualified multilingual staff member means an employee who has proficiency in English and the ability to read, write, or speak in at least one other language at the proficiency level required by the agency/office.

Qualified interpreter means an in-house or contracted interpreter who has been professionally trained and/or demonstrated competence to interpret through court certification, the State Department, or comparable testing and is authorized to do so by contract with the Department or by approval of an agency/office. Qualified interpreters must also demonstrate knowledge of professional standards, and adherence to the corresponding professional code of ethics, as well as familiarity with required USDA terminology.

Qualified translator means an in-house or contracted translator who has been professionally trained and/or demonstrated competence to translate through national certification or comparable testing and is authorized to do so by contract with the Department or by approval of an agency/office. Qualified translators must also demonstrate knowledge of professional standards, and adherence to the corresponding professional code of ethics, as well as familiarity with required USDA terminology.

POLICY

1. In accordance with federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, WIC is prohibited from discriminating based on race, color, national origin, religion, sex, disability, age, marital status, family/parental status, income derived from a public assistance program, political beliefs, or reprisal or retaliation for prior civil rights activity. (See Exhibit 1.09A USDA FNS WIC Nondiscrimination Statement.)
2. USDA requires fair and equitable treatment to every WIC Program employee, applicant and client.
3. All State and local WIC agency staff and their supervisors who interact with WIC applicants/clients must complete civil rights training as stated below.
 - A. New hires must complete the Civil Rights Web-based Training Module and pass (70% score or better) the post-test prior to interacting with applicants/clients. The training Certificate of Completion must be provided to the WIC Coordinator and documented according to Policy 1.07, Local Agency Staffing and Training.
 - B. Current staff must retake the Civil Rights Web-based Training Module and successfully pass the post-test on an annual basis.
4. All information materials, and sources, including websites, used by USDA Food and Nutrition Services (FNS), State agencies, local agencies, or other subrecipients to inform the public about FNS programs must contain the USDA WIC Nondiscrimination statement. It is not required that the nondiscrimination statement be included on every page of the program website. At a minimum, the nondiscrimination statement, or a website link to it, must be included on the home page of the program website. (See

Exhibit 1.09A USDA FNS WIC Nondiscrimination Statement.)

5. Outreach, nutrition education, and any other local agency-developed materials that mention WIC must include the nondiscrimination statement. (See Policy 6.01, Outreach.)
6. Client nutrition education materials that are not developed by the local agency are not required to contain the nondiscrimination statement.
7. If materials do not have space to accommodate the full nondiscrimination statement, the short nondiscrimination statement may be used. (See Exhibit 1.09A USDA FNS WIC Nondiscrimination Statement.)
8. A nondiscrimination statement is not required to be imprinted on items such as cups, buttons, magnets, and pens that identify the Program, when the size or configuration makes it impractical. In addition, recognizing that internet, radio, and television public service announcements are generally short in duration, the nondiscrimination statement does not have to be read in its entirety, rather, the short nondiscrimination statement is sufficient to meet the requirement.
9. Local agencies must display the USDA Nondiscrimination poster, "And Justice for All" or an FNS-approved substitute in a prominent place, at each clinic site.
10. Local agencies must collect and report racial and ethnic data in MI-WIC on each WIC applicant/client. Applicant/client self-identification or self-reporting is the preferred method for obtaining this data.
 - A. Staff must disclose that answering is optional by using the following statement, "Your answer will be used for reporting purposes. If you choose not to answer, agency staff will assign a category to you based on perception."
 - B. Applicants/clients who choose not to identify a USDA racial/ethnic category must not be denied WIC benefits.
11. Local agencies must ensure that interpretation services are available to serve applicants/clients with Limited English Proficiency (LEP).
 - A. Local agencies must notify LEP persons of their right to free language assistance services.
 - B. Local agency options for meeting the language needs of LEP persons include but are not limited to:
 1. Hiring bilingual staff who are trained and competent in the skill of interpreting.

2. Contracting with an interpreter service, including telephone, for trained and competent interpreters.
3. Formally engaging community volunteers who are trained and competent in the skill of interpreting.

Note: Refer to LEP Certification Resources in the Reference section below for resources to meet training and competency requirements.

- C. LEP persons can be permitted to use family and friends if appropriate, only after offering free language assistance.
 - D. Use of another WIC client, volunteer or other non-professional interpreter is not permitted due to concerns with confidentiality, competency, conflict of interest, or privacy.
12. Where a significant number or proportion of the population eligible to be served needs service or information in a language other than English in order effectively to be informed of or to participate in the Program, the local agency must take reasonable steps considering the size and concentration of such population, to provide information in appropriate languages to such persons.
 13. The local agency must allow applicants/clients with disabilities an equal opportunity to participate in the WIC Program. Agencies are required to provide services to disabled clients which:
 - A. Are equal to those provided to non-disabled clients.
 - B. Are held in integrated settings, appropriate to each person's needs (i.e., hearing or vision impairment, limited English proficiency in reading, writing and/or speaking).
 - C. Allow full participation without barriers restricting access to the program, including but not limited to, readily accessible facilities.
 14. Applicants/clients must be advised at initial and subsequent certification appointments, and upon request, of their right to file a complaint, how to file a complaint and the complaint procedures. (See Policies 2.18, Notification of Client Rights and Responsibilities, and 2.18A Client Agreement.)
 15. An applicant/client or representative alleging discrimination based on a protected class has the right to file a complaint within 180 days of the alleged discriminatory action.

- A. If State or local agency staff receive a report alleging discrimination, staff must assist the complainant with documentation and submission of the complaint using one of the following methods:
 1. Refer complainant to the website to access the USDA Program Discrimination Complaint Form
<https://www.usda.gov/sites/default/files/documents/ad-3027.pdf>.
 2. Provide complainant with a copy of the USDA Program Discrimination Complaint Form.
 3. Fill out the USDA Program Discrimination Complaint Form for complainants who refuse to put the allegation in writing and file.
- B. If a complaint of discrimination is reported to the State or local agency, staff have five (5) days to file the complaint with USDA. USDA then has 90 days to process and resolve the complaint.
- C. Local agency staff must notify the State agency when a complaint has been filed by the local agency and if aware, by the applicant/client.
- D. Staff must never interfere with, or discourage, an individual from filing a complaint, and they may explore the situation with the complainant to correct potential misinformation or misunderstandings.
- E. Staff must assist the client with completing the Form if requested.
- F. Staff must not retaliate against a discrimination complainant.

A. GUIDANCE

1. Criteria for local agencies to consider when determining the need to provide language assistance services to LEP individuals may include but are not limited to:
 - A. The number or proportion of LEP persons eligible to be served or likely to be encountered within the area serviced by the recipient.
 - B. The frequency with which LEP people encounter the program or activity.
 - C. The nature and importance of the program, activity, or service to people's lives.
 - D. The resources available to the recipient and costs.
2. Federal guidance supports translation into non-English languages when the LEP language group constitutes five percent or 1,000, whichever is less, of the population of persons eligible to be served or likely to be affected or encountered. For additional information refer to Guidance to Federal Financial Assistance Recipients Regarding Title VI, Prohibition Against National Origin Discrimination Affecting Limited English Proficient

Persons (hhs.gov), Part VI. C., Safe Harbor Provision.

References:

7 CFR parts 15, 15a, 15b

7 CFR 246.8

USDA WIC Nondiscrimination Statement: <https://www.fns.usda.gov/civil-rights/usda-nondiscrimination-statement-other-fns-programs>

USDA FNS WIC Nutrition Services Standards, August 2013, page 5, A.8

Food and Nutrition Services Language Access Plan, February 9, 2024

Guidance to Federal Financial Assistance Recipients Regarding Title IV Prohibition Against National Origin Discrimination Affecting Limited English Proficient Persons (hhs.gov)

LEP Certification Resources:

- American Translator Association (ATA) - <https://www.atanet.org/certification/guide-to-ata-certification>
- Michigan Online Interpreter Search
- U of M Arabic Translation Certification - <https://umdearborn.edu/casl/undergraduate-programs/certificates/arabic-translation-certificate>
- University of Michigan Health Interpreter Services <https://www.uofmhealth.org/support-services/interpreter-services>

Cross References:

1.07 Local Agency Staffing and Training

2.18 Notification of Client Rights and Responsibilities

2.18A Client Agreement

6.01 Outreach

Exhibits:

1.09A USDA FNS WIC Nondiscrimination Statement